

LEAVE & LICENCE AGREEMENT

This Agreement of ‘**LEAVE AND LICENCE**’ made this _____ between **KIRTHIKA K KANORIA**, age –adult Years (having their contact address) Residing at- M-1402, Sorrel Appartment, Nr.Sabar Hotel, Sanand Road, Bopal, Shantipura Cross Road, Sanathal, Ahmedabad-382210, Gujarat, India.(**Mo.8105285312**) (herein after called the "**LICENSOR**" which expression shall unless excluded by or repugnant to the context include their heirs, successors, executors, administrators, legal representatives and assigners) of the ‘**ONE PART**’

And

(1) **SHISHANGIYA SHIVANI BHUPATBHAI** (having contact address at) Address - Ashapura Society, Gondal, Rajkot, Gujarat-360311, India. (M)9638428090 (2) **KALARIYA KHUSHI RATILAL** (having contact address at) Address - Om, Avadh Saree Street, Kailash Baug, Gondal, Rajkot, Gujarat-360311, India. (M)9638428090 (herein after called the ‘**LICENSEE**’ which expression shall, include their successors and assigners) of the ‘**OTHER PART**’.

That the '**LICENSOR**' hereby allows the '**LICENSEE**' to use the premises located at **M-1402, Sorrel Appartment, Nr.Sabar Hotel, Sanand Road, Bopal, Shantipura Cross Road, Sanathal, Ahmedabad, Gujarat, India.**

Whereas it has been agreed that the Licensee shall (with the leave and License of the Licensor) have the use of the Licensed Premises upon the terms and conditions contained herein.

NOW THE DEED WITNESSETH AS FOLLOWS:

1. LICENCE FEE:

That the licensee shall pay to the Licensor of the premises, the license fee of **Rs.26,000/- (Rupees Twenty Six Thousand Only)** which is Including maintenance & Tax. Licensee pays to licensors the advance license fee every month between 1st- 10th day of each English Calendar Month. One Advance license fee of **Rs.26,000/- (Rupees Twenty Six Thousand Only)** paid by Cash/Cheque/Online Transfer.

2. DEPOSIT:

That the Licensee shall pay/ has paid to the non interest bearing security deposit of **Rs.52,000/- (Rupees Fifty Two Thousand Only)** which will be refunded by the licensor against vacating the premises and clearing out standings towards Electricity and other government and semi government dues whichever applicable as per this agreement and producing the copies of payments made to the concerned authority to the licensor.

3 OTHER CHARGES:

A ELECTRICITY, GAS Bill, WATER Bill:

That the Licensee shall pay the Electricity Charges, Gas Bill, Water Bill separately which will be Exclusive of the License fee.

B. SOCIETY'S/ ASSOCIATION'S COMMON MAINTENANCE CHARGES

That the Licensor shall pay Society's/Association's common maintenance charges towards common lighting, Sweeping, Security, Water pumping, bore well maintenance, lift Parking etc. which will be Including of the license Fee.

C LOCAL AUTHORITY TAXES:

That the Licensor shall pay the Local Authority taxes of Gram Panchayat/ AUDA Charges and Municipal Taxes and cases of the said premises is merged in to Municipal Corporation Limit between this agreement period shall also be paid by Licensor only.

4. PERIOD :

That the Leave & License agreement is granted for a period of 11 months 29 Day commencing from 15-11-2024 and expiring on 13-11-2025 that the license fee stand from that date.

4.1 NOTICE PERIOD :

One month's notice from either side in writing will be sufficient to terminate this agreement and on such termination, the Licensee will handover the vacant and peaceful possession back to the Licensor.

- 5. Lock-in Period : 6 Months.** If Licensee vacate premises before 6 Months, One month Licensee fee will be deducted from Deposit.

6. RENEWAL OPTION :

Licensor and Licensee shall have an option to renew this agreement for another interval of 11 months 29 day and this agreement shall be renewed with increase in license fee by 10 % under mutual consent of both the parties.

- 7.** That the licensee shall not sub-licensee, assign or sublet any part or whole of the said premises to anybody during the license period.
- 8.** That the licensee shall not carry any structural addition / alternation to the building layout, fittings or fixtures without the written consent of the licensor.
- 9.** That the licensee shall not keep any hazardous or inflammable items/goods etc. in the said premises which is prohibited by the Law.
- 10.** That the licensee shall not carry out any antisocial activity prohibited under the prevailing Act of Law.
- 11.** That the licensee shall not create any kind of nuisance/annoyance or hindrance in the said premises or its surrounding neighborhood and the society Association's norms, rules and regulation will be binding to the licensee and its occupant.

12. That the licensee shall permit the licensor to enter upon the said premises for inspection and carry repairs etc as when necessary at the reasonable hour with prior intimation.
13. That the licensee shall bear the current day to day minor repairs and maintenance of the said premises. When the licensor shall take possession back on that time premises should be in original condition if any intentional damage is observed it will be repaired and the amount will be deducted from the deposit.
14. If the licensee fails to comply on any of the terms mentioned in this Agreement. Licensor shall have the right to terminate this Agreement by giving one month's notice to the licensee to the shall liable to hand over the vacant and peaceful possession back to the licensor.
15. That the said premises is let to **Licensee** for the Residential use - **M-1402, Sorrel Appartment, Nr.Sabar Hotel, Sanand Road, Bopal, Shantipura Cross Road, Sanathal, Ahmedabad, Gujarat, India.**
16. It being the express intention of both parties that is purely a leave and License Agreement and nothing herein contained shall constitute any tenancy or sub tenancy between the licensor and the Licensee.
17. That the original copy of this Agreement will be retained by the Licensor and a duplicate copy (Xerox copy) will be retained by the Licensee.
18. That the licensor hereby warrants to the Licensee that he/she is the member of the said Society/Association and is entitled to enter into and execute this Agreement. The Licensor further warrants that there are no outstanding payments or taxes required to the Association or to anybody or authority or any proceedings pending in connection with the ownership or otherwise of the said premises.
19. Upon the expiry of the term and if renewed, upon expiry of renewed term or sooner determination of this Agreement or the renewed term the Licensee shall deliver vacant possession of the said premises by removing all their belonging and physically handover the said premises to the Licensor and clear all the dues payable as per this Agreement. The Licensee shall in that event be entitled to remain in

occupation of the said premises until refund of deposit without liability to make any payments otherwise payable under the terms of this Agreement.

20. The terms of this Agreement shall not be altered or added to nor shall anything be omitted from this Agreement except by means of an Agreement in writing duly signed by the parties hereto. The Licensee shall not be entitled to any other reasons whatsoever.
21. That the Licensee hereby agreed to indemnify & keep indemnified the Licenser against any loss, damage (immediate, remove or consequential), action, claim, suit, proceedings, cost, charges and expenses arising out of any cause attributable to the Licensee of the said premises, or any breach and/or violation of any of the terms and conditions contained here in to be observe and performed by the Licensee.
22. The Licenser shall deliver the said premises to the Licensee complete in all respects with electricity & clearing all the dues toward Electricity, Association's Maintenance Charges, Telephone Bills (If Applicable) and the local Authority Taxes like Gram Panchayat Taxes/ Municipal Taxes till the date of commencement of this Agreement Falling which: the licensee shall clear dues on behalf of the licenser and will deduct that from the License fee payable to the Licenser.
23. In case of any disputes, all claims will be settled in the court of the Ahmedabad Jurisdiction only.
24. That the licenser shall also agree(s)that the licensee paying the license fee hereby (reserved and performing the conditions herein contained) shall peacefully and quietly possess and enjoy the said premises during the currency of the agreement without interruption or disturbance by the licenser.
25. That the licensee shall not carry out any illegal business activities . the licensee shall be responsible for all the liabilities in whatever named called arises during the period of agreement the licenser shall not be liable for any liabilities arises, any done or deeds performed by the licensee.

IN WITNESS where of the Licensor and the Licensee have set their hands
in the day and year first written above.

Place : **Ahmedabad**

Date :

(LICENSOR)

(Witness)

(LICENSEE)

(LICENSEE)

(Witness)

Annexure

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